June 22, 2026

Chairman Thomas Umberg
Senate Judiciary Committee
Capitol Office, 1021 O Street, Suite 6610
Sacramento, CA 95814

Vice Chairman Roger Niello
Senate Judiciary Committee
Capitol Office, 1021 O Street, Suite 7110
Sacramento, CA 95814

Assembly Member Josh Lowenthal
California State Assembly
Capitol Office, 1021 O Street, Suite 8320
Sacramento, CA 95814

RE: Ad Trade Letter in Opposition to California AB 883

Dear Chair Umberg, Vice Chair Niello, and Assembly Member Lowenthal:

On behalf of the advertising industry, we respectfully oppose AB 883 in its current form, and we offer this letter to express our non-exhaustive list of concerns with the proposed legislation.[1] We appreciate the Assembly's focus on protecting personal information associated with elected officials and judges. However, as currently drafted, AB 883 would amend California's existing data broker law to shorten the required timeframe for data brokers to check the Delete Request and Opt-Out Platform ("DROP") and process consumers' deletion requests from every 45 days to 30 days, and would also create a private right of action.[2] The Senate Judiciary Committee ("Committee") should allow the recently enacted deletion mechanism to operate under its existing timelines and existing enforcement mechanisms. We strongly urge the Committee to support implementation efforts, rather than passing additional mandates and compliance obligations.

I. AB 883 would change the required deletion timeline under existing law from 45 days to 30 days.

The California Delete Act's requirements have not yet become fully operative. Beginning in August, registered data brokers will be required to begin processing consumer deletion requests submitted through the DROP. AB 883 proposes to amend the timeline by which data brokers must process those requests before the CalPrivacy or data brokers have even experienced the 45-day timeline set forth under existing law. AB 883 would impose accelerated compliance timelines that provide little demonstrated consumer benefit, while significantly increasing operational burdens on regulated data brokers.

Existing law already requires data brokers to process deletion requests through the DROP and to honor those requests on a 45-day cycle.[3] This timeline aligns with the timeline by which all businesses must process consumer deletion requests under the California Consumer Privacy

[1] California AB 883 (2025-2026 Reg. Sess.), located here (hereinafter, "AB 883").
[2] AB 883 § 1-2.
[3] Cal. Civ. Code § 1798.99.86(c)(1)(A).

Act.[4] AB 883 would shorten the deadline for data brokers to honor DROP requests to 30 days, requiring more frequent system access and processing of deletion requests, in addition to vendor coordination and record-management activities to ensure compliance.[5] This accelerated timeline would also disproportionately impact smaller and start-up data brokers, exposing good-faith actors to increased enforcement risk and compliance costs that could stifle competition and chill innovation in California's marketplace. This amendment is being proposed without evidence that the current framework is inadequate or that current law's 15 extra days to effectuate requests have had any negative impact on consumers. By increasing compliance costs and administrative complexity, the bill risks diverting crucial resources away from investments in data security, privacy safeguards, and innovation. Importantly, singling out and disfavoring one category of speakers in contrast to all other speakers regulated under law raises constitutional concerns. Accordingly, we urge the Committee to consider allowing the recently enacted deletion mechanism to operate under its existing timelines before imposing additional mandates and compliance obligations.

II. AB 883 would create a private right of action.

AB 883's enforcement provisions allow for a private right of action.[6] AB 883 should be updated to clarify that it does not create a private right of action under any law. Instead, enforcement should be vested in existing enforcement mechanisms under the Delete Act. Such an enforcement structure would lead to stronger outcomes for California residents while better enabling businesses to allocate resources to developing processes, procedures, and plans to facilitate compliance with the bill's deletion requirements. State government enforcement, instead of a private right of action, is in the best interests of consumers and businesses alike.

A private right of action in AB 883 would create a complex and flawed compliance system without tangible benefits for consumers. In addition, allowing private actions will flood California's courts with frivolous lawsuits driven by opportunistic trial lawyers searching for technical violations, rather than focusing on actual consumer harm.[7] Private right of action provisions are completely divorced from any connection to actual consumer harm and provide consumers little by way of protection from detrimental data practices.

Private litigant enforcement provisions do not effectively address consumer protection concerns or deter undesired business conduct. They expose businesses, including the small businesses, to extraordinary and potentially enterprise-threatening costs for technical violations of law rather than drive systemic and helpful changes to business practices. We therefore

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[4] Cal. Civ. Code § 1798.130(a)(2).

[5] AB 883 § 1, Cal. Civ. Code § 1798.99.86(c)-(d).

[6] AB 883 § 2, Cal. Civ. Code § 1798.99.86.5(f).

[7] A select few attorneys benefit disproportionately from private right of action enforcement mechanisms in a way that dwarfs the benefits that accrue to the consumers who are the basis for the claims. For example, a study of 3,121 private actions under the Telephone Consumer Protection Act ("TCPA") showed that approximately 60 percent of TCPA lawsuits were brought by just forty-four law firms. Amounts paid out to consumers under such lawsuits proved to be insignificant, as only 4 to 8 percent of eligible claim members made themselves available for compensation from the settlement funds. U.S. Chamber Institute for Legal Reform, *TCPA Litigation Sprawl* at 2, 4, 11-15 (Aug. 2017), located here.

encourage the Committee to remove the private right of action from AB 883 and vest enforcement authority with the AG alone.

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As the nation's leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, advertising agencies, and technology providers. Our combined membership includes more than 2,500 companies that power the commercial Internet, which accounted for nearly 20 percent of total U.S. gross domestic product ("GDP") in 2024.[8] By one estimate, approximately 18.9% of California jobs in 2024 were related to the ad-subsidized Internet, a share projected to increase to 20.9% by 2029.[9] Our group has more than a decade's worth of hands-on experience it can bring to bear on matters related to consumer privacy and controls. We and our members strongly support meaningful privacy protections for Californians.

As currently drafted, AB 883 would alter the rules of the road while businesses are still implementing recently enacted requirements, undermining regulatory certainty and imposing additional compliance costs on companies that have already dedicated significant resources to meeting their obligations under current law. We therefore respectfully ask the Committee to decline to advance AB 883 as proposed. We would welcome the opportunity to engage with the Committee further on the points we discuss in this letter.

Thank you in advance for your consideration of this letter.

Sincerely,

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CC: Members of the California Senate Judiciary Committee

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[8] S&P Global, THE ECONOMIC IMPACT OF ADVERTISING ON THE US ECONOMY, 2024-2029 at 4 (Aug. 2025), located at https://theadcoalition.com/wp-content/uploads/2025/08/TAC_SP-Global-Final-Report_August-2025.pdf.
[9] *Id.* at 15-16.